

M/s Nawla Ispat Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 12 September 2016 · Writ - C No. 35008 of 2013 · **Writ dismissed as infructuous**

HEADNOTE

A writ challenging additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar pending petitions and protected by an interim restraint on the demand. On the petitioner's statement that the writ had become infructuous, it was dismissed as infructuous without deciding the Code challenge.

FACTUAL SUMMARY

M/s Nawla Ispat Pvt. Ltd. challenged before the Allahabad High Court a demand of additional security by Paschimanchal Vidyut Vitran Nigam Ltd. under Para 4.20 of the U.P. Electricity Supply Code, 2005. The petition was connected with Writ Petition No. 30582 of 2009 (M/s Vehina Steels & Alloys Pvt. Ltd.) and other similar matters then pending. Respondents were granted three weeks to file a counter affidavit, and additional-security demand was stayed in line with the connected interim order. In 2016 the petitioner's counsel stated the writ had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005, earlier connected with similar pending matters and protected by an interim restraint on that demand, was dismissed as infructuous on the petitioner's statement. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Merits of the connected Code challenge were not decided; the writ was dismissed as infructuous. ¶ 2